

HOUSE BILL 1694

By Reneau

AN ACT to amend Tennessee Code Annotated, Title 39, Chapter 14, Part 2; Title 44, Chapter 17; Title 63, Chapter 12 and Title 68, Chapter 140, relative to emergency services for specially trained animals.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Tennessee K-9 Emergency Medical Care and Transport Act."

SECTION 2. Tennessee Code Annotated, Section 63-12-103, is amended by adding the following as new, appropriately designated subdivisions:

() "Ambulance service" has the same meaning as defined in § 68-140-302;

() "Canine first responder" means a dog:

(A) With specialized training, or being trained, for police, military, or patrol work; detection work; or search-and-rescue; and

(B) Being used by and under the control of a federal, state, or local law enforcement officer, railroad police officer commissioned pursuant to § 65-6-133, or a member of the United States armed forces or of a reserve or Tennessee national guard unit in the performance of the officer's or member's law enforcement or military duties;

() "Emergency medical services personnel" has the same meaning as defined in § 68-140-302;

() "Emergency veterinary medicine service director" means a licensed veterinarian who provides veterinary medicine advice, direction, oversight, and authorization to emergency medical services personnel at an ambulance service for

purposes of transporting and providing emergency veterinary medicine care to a canine first responder that is injured in the line of duty;

SECTION 3. Tennessee Code Annotated, Title 63, Chapter 12, Part 1, is amended by adding the following as a new section:

(a) The board of veterinary medical examiners, in consultation with the Tennessee emergency medical services board, shall promulgate rules, pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to:

(1) Establish requirements for a licensed veterinarian to serve as an emergency veterinary medicine service director; and

(2) Approve a program to train emergency medical services personnel to transport and provide emergency care to a canine first responder injured in the line of duty.

(b) A licensed veterinarian who meets the requirements established pursuant to subdivision (a)(1) may serve as an emergency veterinary medicine service director for an ambulance service.

(c) Upon successful completion of the training established pursuant to subdivision (a)(2), and subject to the veterinary medicine advice, direction, oversight, and authorization of an emergency veterinary medicine service director, emergency medical services personnel may:

(1) Transport a canine first responder injured in the line of duty to a veterinary clinic, veterinary hospital, or other similar facility, if there is no individual who requires medical attention or transport at that time; and

(2) Provide emergency care to a canine first responder injured in the line of duty while at the scene of the injury or while the canine first responder is being transported pursuant to subdivision (c)(1).

SECTION 4. Tennessee Code Annotated, Section 63-12-133, is amended by adding the following as a new subsection:

(d) Emergency medical services personnel who transport or provide emergency care to a canine first responder injured in the line of duty pursuant to Section 3 are not required to be licensed under this chapter.

SECTION 5. Tennessee Code Annotated, Title 68, Chapter 140, Part 3, is amended by adding the following as a new section:

(a) As used in this section, "canine first responder" means a dog:

(1) With specialized training, or in the process of receiving specialized training, for police, military, or patrol work; detection work; or search-and-rescue; and

(2) Being used by and under the control of a federal, state, or local law enforcement officer, railroad police officer commissioned pursuant to § 65-6-133, or a member of the United States armed forces or of a reserve or Tennessee national guard unit in the performance of the officer's or member's law enforcement or military duties.

(b) Subject to Section 3, emergency medical services personnel may:

(1) Transport a canine first responder injured in the line of duty to a veterinary clinic, veterinary hospital, or other similar facility, if there is no individual who requires medical attention or transport at that time; and

(2) Provide emergency care to a canine first responder injured in the line of duty while at the scene of the injury or while the canine first responder is being transported pursuant to subdivision (b)(1).

(c) Emergency medical services personnel who act in good faith to provide emergency care to a canine first responder pursuant to subdivision (b)(2) are immune

from criminal and civil liability as it relates to any injury or harm caused to the injured canine first responder. Emergency medical services personnel are also immune from criminal and civil liability for refusing to provide care to or transport an injured canine first responder.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.